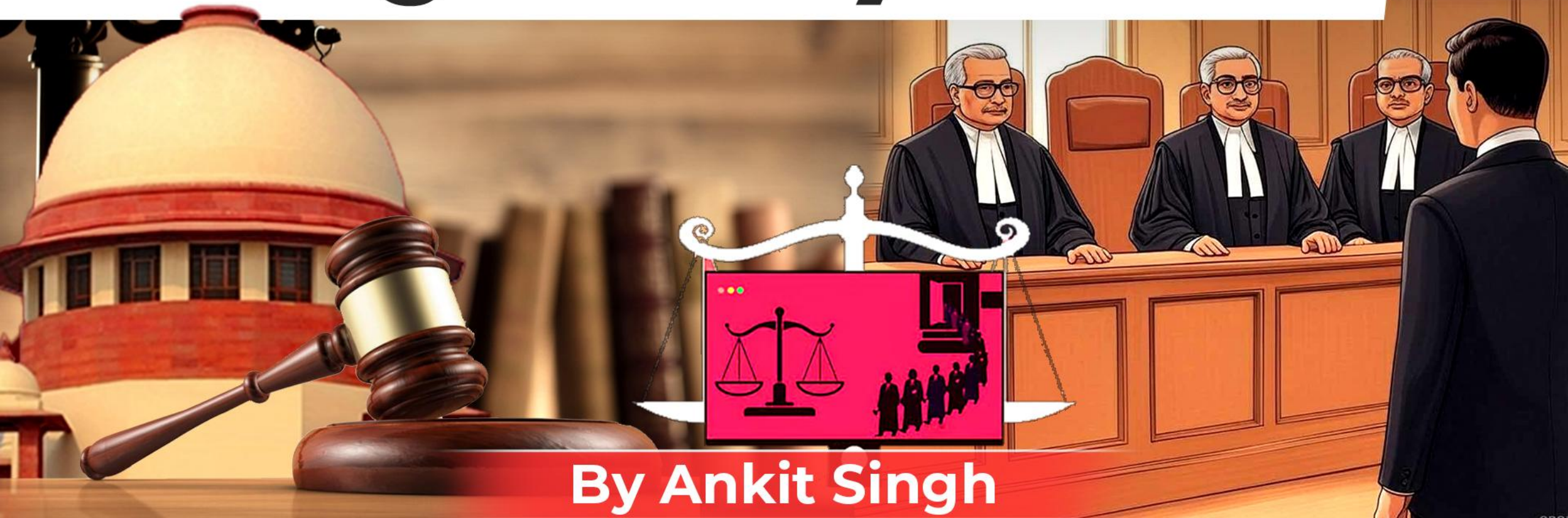


What is a

Collegium System ?



By Ankit Singh

Collegium names 2 High Court CJs, 1 judge for top court

EXPRESS NEWS SERVICE
NEW DELHI, MAY 26

THE SUPREME Court Collegium on Monday recommended the appointment of Karnataka High Court Chief Justice N V Anjaria, Gauhati High Court Chief Justice Vijay Bishnoi and Bombay High Court judge Justice A S Chandurkar as apex court judges.

In a major reshuffle, the five-member Collegium headed by Chief Justice of India B R Gavai, which met on Monday afternoon, also recommended the appointment of five new High Court Chief Justices, and transferred four Chief Justices and 22 other Judges. Some senior judges from other HCs are likely to join the Delhi HC.

The Collegium's statement said Justice Anjaria's parent High Court is the Gujarat HC, and that of Justice Vijay Bishnoi is Rajasthan HC. The Collegium had met to discuss the vacancies which had arisen following the retirements of former CJI Sanjiv Khanna and Justice A S Oka. The

Supreme Court, which has a sanctioned strength of 34, was working with 32 judges after their retirement. A third vacancy will arise upon the retirement of Justice Bela M Trivedi on June 9.

Meanwhile, Justice Vibhu Bakhru of the Delhi HC has been recommended for appointment as Karnataka HC Chief Justice; Patna HC Acting Chief Justice Ashutosh Kumar as Gauhati HC Chief Justice; Madhya Pradesh HC's Justice Sanjiv Sachdeva as its new Chief Justice; Patna HC's Justice Vipul Manubhai Pancholi as its new Chief Justice; and Himachal Pradesh HC's Justice Tarlok Singh Chauhan as Chief Justice of Jharkhand HC.

The Collegium also recommended the transfer of Rajasthan HC Chief Justice to the Madras HC; transfer of Madras HC Chief Justice to Rajasthan HC; transfer of Jharkhand HC Chief Justice to Tripura; and transfer of Tripura HC CJ to Telangana. The other members of the Collegium are Justices Surya Kant, Vikram Nath, J K Maheshwari, and BV Nagarathna.

Collegium recommends transfers or repatriation of 21 High Court judges

PRESS TRUST OF INDIA
NEW DELHI, MAY 27

THE SUPREME Court collegium has recommended transfers or repatriation of 21 judges of several high courts.

The collegium, headed by CJI B R Gavai, recommended the transfers or repatriation of these HC judges at its meeting held Monday, said a statement uploaded on the SC website.

It said the collegium has recommended that Telangana HC judge Sujoy Paul be transferred to the Calcutta HC and Justice V Kameswar Rao of Karnataka HC be repatriated to Delhi HC.

Gauhati HC judges Lanusungkum Jamir and Manash Ranjan Pathak have been recommended for transfer to Calcutta and Orissa HCs respectively.

It also recommended transfer of Bombay HC judge Nitin Wasudeo Sambre to Delhi HC; Allahabad HC judge Ashwani Kumar Mishra to Punjab and

Haryana HC, Gauhati HC judge Suman Shyam to Bombay HC; Justice Vivek Chaudhary of Allahabad HC to Delhi HC; Kerala HC judge Dinesh Kumar Singh to Karnataka HC; Madras HC judge Vivek Kumar Singh to Madhya Pradesh HC; Allahabad HC judge Om Prakash Shukla to Delhi HC; Justice Shree Chandrashekhar of Rajasthan HC to Bombay HC; Punjab and Haryana HC judge Anil Kshetarpal to Delhi HC; Rajasthan HC judge Arun Kumar Monga to Delhi HC; Justice Jayant Banerji of Allahabad HC to Karnataka HC; and Karnataka HC judge Lalitha Kanneganti to Telangana HC.

It recommended repatriation of Justice Sudhir Singh of Punjab and Haryana HC to Patna HC; Karnataka HC's Justice C Sumalatha to Telangana HC; Patna HC judge Annireddy Abhishek Reddy to Telangana HC; Punjab and Haryana HC judge Sanjeev Prakash Sharma to Rajasthan HC; and Madras HC judge Battu Devanand to Andhra Pradesh HC.

Indian Express
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Context

- The Supreme Court Collegium decided to recommend the appointment of Karnataka High Court Chief Justice N V Anjaria, Gauhati High Court Chief Justice Vijay Bishnoi, and Bombay High Court judge Justice A S Chandurkar as judges of the top court
- These vacancies had arisen following the retirement of former Chief Justice of India Sanjiv Khanna and Justice A S Oka. A third vacancy will arise upon the retirement of Justice Bela M Trivedi on June 9. Though yet to retire, her last working day was on May 15

124. Establishment and constitution of Supreme Court.

(1) There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven¹ other Judges.

(2) Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose and shall hold office until he attains the age of sixty-five years:

Provided that in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of India shall always be consulted:

217. Appointment and conditions of the office of a Judge of a High Court.

(1) Every Judge of a High Court shall be appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court, and shall hold office, in the case of an additional or acting Judge, as provided in article 224, and in any other case, until he attains the age of sixty-two years:

Evolution of the Collegium System

- **1950:** Initially, the President appointed the Chief Justice of India (CJI) and other Supreme Court judges after consulting the CJI.
- **Early Practice:** Senior-most Supreme Court justices were typically chosen as the next CJI, although notable exceptions, such as Justice AN Ray's appointment in 1973 led to conflicts.



JUDGEMENT



- **First Judges Case (1981)- S.P. Gupta vs. Union of India:** Defined "consultation" as not requiring the government's concurrence making CJI's advice non-binding.
- **Second Judges Case (1993)- Advocates-on-Record Association vs. Union of India:** Changed the interpretation to "concurrence" making the CJI's advice binding, with the advice formulated through a collegium of senior judges.
- **Third Judges Case (1998):** Established the collegium structure for SC and HCs
 - Supreme Court: CJI and 4 senior-most judges
 - High Court: CJI and 2 senior-most judges with consultation from other senior Supreme Court judges experienced in the High Court.
- **Fourth Judges Case (2015)- Supreme Court Advocates on Record Association Case:** Declared NJAC unconstitutional emphasising the judiciary's primacy in appointments.
 - The 99th Constitutional Amendment aimed to replace the Collegium with the NJAC including the Union Law Minister, eminent individuals, the CJI and two senior Supreme Court judges.



- First Judges Case (1981) - S.P. Gupta vs. Union of India - "consultation" as not requiring the concurrence making CJI's advice

- Justice (1993)- Advocates-on-Record
of India: Changed the "Precedence" making the CJI's advice
 advice formulated through a collegium

- **1998**: Established the collegium system and HCs
CJI and 4 senior-most judges
and 2 senior-most judges with
other senior Supreme Court
judges in the High Court.

(2015) Supreme Court
Union Case: Declared
the judiciary's

Amendment aimed to
with the NJAC including the
minent individuals, the CII and

consultation $\neq$ concurrency

consultation = (concurrency)
CJ1 + 2SC
1 + 2
collegium

$$SC \Rightarrow 1 + 4SC$$

HC $\rightarrow$ 1 + 2SC + other

$2015 \rightarrow 99^{\text{th}} AA \rightarrow NTA$

$(I + 28C + LawMin) + 2(E_{IS}) \xrightarrow{(CO)} PPL \rightarrow WPP(LS)$

Practice Question

Q. Consider the following statements regarding the Collegium System in the Indian Judiciary:

- 1. The Collegium System is explicitly mentioned in the Constitution of India.**
- 2. The system consists of the Chief Justice of India (CJI) and a group of senior judges of the Supreme Court.**
- 3. The Collegium System is responsible for the appointment and transfer of judges of the Supreme Court, High Courts and District Courts in India.**

Which of the statements given above is/are not correct?

- (a) 1 and 2 only**
- (b) 2 and 3 only**
- (c) 1 and 3 only**
- (d) 1, 2, and 3**